



Appealing a **Non-Criminal** Traffic Violation Decision

An Informational Guide to a North Dakota Civil Court Process

The North Dakota Legal Self Help Center provides resources to people who represent themselves in civil matters in North Dakota State District Courts. The information provided in this informational guide **isn't** intended for legal advice but only as a general guide to a civil court process.

If you decide to represent yourself, you need to do additional research to prepare.

If you're unsure how to proceed, don't know if this informational guide suits your needs, or need legal advice or legal representation, consult a lawyer licensed to practice in North Dakota. For more information about finding a lawyer, go to ndcourts.gov/legal-self-help/finding-a-lawyer.

When you represent yourself, you're expected to know and follow the law, including:

- State or federal laws that apply to your case;
- Case law, also called court opinions, that applies to your case; and
- Court rules that apply to your case, which may include:
 - North Dakota Rules of Civil Procedure;
 - North Dakota Rules of Court;
 - North Dakota Rules of Evidence;
 - North Dakota Administrative Rules and Orders;
 - Any local court rules.

Links to the laws, case law, and court rules can be found at ndcourts.gov.

A glossary with definitions of legal terms is available at ndcourts.gov/legal-self-help/glossary.

When you represent yourself, you're held to the same requirements and responsibilities as a lawyer, even if you don't understand the rules or procedures.

This information **isn't** a complete statement of the law. This covers basic information about the process of appealing a Municipal Court decision on a **non-criminal** traffic violation to a North Dakota state district court. The Center isn't responsible for any consequences that may result from the information provided. The information can't replace the advice of a lawyer licensed in the state of North Dakota.

Use at your own risk.

When Can a Municipal (City) or District Court Decision on a **Non-Criminal** Traffic Violation be Appealed?

Municipal Court Decisions:

Municipal court decisions on **non-criminal** traffic violations **may** be appealed to a North Dakota state district court **only if**:

- You requested a municipal court hearing on your non-criminal traffic violation;
- You attended the hearing; **and**
- You want to appeal the municipal court decision on your non-criminal traffic violation.

If you didn't request a municipal court hearing for your non-criminal traffic violation, or if you requested a hearing but didn't attend the hearing, **Stop! You can't appeal.**

District Court Decisions:

District court decisions on **non-criminal** traffic violations **can't** be appealed to the North Dakota Supreme Court.

What are North Dakota Laws and Rules Related to Appeals of **Non-Criminal** Traffic Violations?

North Dakota Century Code Chapter 39-06: Operator's Licenses. Chapter 39-06 is available at ndlegis.gov/cencode/t39c06.html.

North Dakota Century Code Chapter 39-06.1: Disposition of Traffic Offenses. Chapter 39-06.1 is available at ndlegis.gov/cencode/t39c06-1.html.

- See Section 39-06.1-03 for **non-criminal** traffic violation appeals from municipal court to district court.
- See Section 39-06.1-05 for the list of **criminal** traffic violations.

Rule 16 of the North Dakota Supreme Court Administrative Rules applies to appeals from municipal courts. Go to ndcourts.gov/legal-resources/rules/ndsuptadminr/16.

The North Dakota Rules of Civil Procedure apply to civil matters in North Dakota State District Courts. Go to ndcourts.gov/legal-resources/rules/ndrcivp.

The North Dakota Rules of Criminal Procedure apply to appeals of municipal court decisions to North Dakota state district courts. Go to ndcourts.gov/legal-resources/rules/ndrcrimp.

The North Dakota Rules of Court apply to civil matters in North Dakota State District Courts. Go to ndcourts.gov/legal-resources/rules/ndrct.

The North Dakota Rules of Evidence apply to civil and criminal matters in North Dakota State District Courts. Go to ndcourts.gov/legal-resources/rules/ndrev.

What are Definitions of Some Commonly Used Terms Related to Appeals of **Non-Criminal** Traffic Violations?

Appeal – A request made after trial, asking an appeals court to decide whether the trial was conducted properly. In appeals of municipal court non-criminal traffic violations, a North Dakota state district court is the appeals court.

Criminal Traffic Violations – Most traffic violations in North Dakota state law ([N.D.C.C. Chapter 39-07](#)) and municipal ordinances are non-criminal. However, the following are criminal traffic violations ([N.D.C.C. Section 39-06.1-05](#) and equivalent ordinances):

- Driving or being in actual physical control of a vehicle in violation of [N.D.C.C. Section 39-08-01](#), or an equivalent ordinance.
- Reckless driving or aggravated reckless driving in violation of [N.D.C.C. Section 39-08-03](#), or an equivalent ordinance.
- A violation of [N.D.C.C. Chapter 12.1-16](#) resulting from the operation of a motor vehicle.
- Leaving the scene of an accident in violation of [N.D.C.C. Section 39-08-04](#), [39-08-05](#), [39-08-07](#), or [39-08-08](#), or equivalent ordinances.
- Driving while license or driving privilege is suspended or revoked in violation of [N.D.C.C. Section 39-06-42](#), or an equivalent ordinance.
- Violating subdivision b or c of subsection 5 of [N.D.C.C. Section 39-24-09](#).
- Operating an unsafe vehicle in violation of subsection 2 of [N.D.C.C. Section 39-21-46](#).
- Causing an accident with an authorized emergency vehicle or a vehicle operated by or under the control of the director used for maintaining the state highway system in violation of subsection 5 of [N.D.C.C. Section 39-10-26](#).

Individuals who found guilty of criminal traffic violations must pay a fine or fines, and have a misdemeanor or felony on their criminal record.

District Court – The North Dakota state trial court of general jurisdiction with service in each of North Dakota’s 53 counties. All district courts are supervised and funded by the state. Decisions about criminal and non-criminal traffic violations may be handled by a district court. District courts are also the appeal courts for municipal court decisions involving criminal and non-criminal traffic violations.

Municipal Court – The trial court for the city or municipality. Municipal courts have jurisdiction over all violations of municipal ordinances, except certain violations involving juveniles. Municipal courts are funded by the city or municipality. Decisions about criminal and non-criminal traffic violations may be handled by a municipal court. Municipal court decisions about criminal and non-criminal traffic violations may be appealed to a North Dakota state district court.

Non-Criminal (Administrative) Traffic Violations – Most traffic violations in North Dakota state law ([N.D.C.C. Chapter 39-07](#)) and municipal ordinances are non-criminal. Individuals who are guilty of non-criminal traffic violations must pay a fine or fines, but **won’t** have a misdemeanor or felony on their criminal record.

North Dakota Department of Transportation – A state agency to which criminal and non-criminal traffic convictions are reported by municipal and North Dakota state district courts. ([dot.nd.gov](#); (701) 328-2500)

Points – Many traffic violations are assigned a certain number of points based on the seriousness of the offense. When an adult driver accumulates 12 or more points on their record, or a minor driver (under 18 years old) accumulates 6 or more points on their record, the North Dakota Department of Transportation suspends the driver’s license.

- [Driver Training Course Informational Guide](#)

Prosecuting Attorney – The lawyer who represents either the city or municipality for ordinance violations, or the lawyer who represents the State of North Dakota for state law violations.

Who are the Parties in a State Law or Municipal Ordinance **Non-Criminal** Traffic Violation?

Plaintiff – If the non-criminal traffic violation is a **state law offense**, the Plaintiff is the State of North Dakota. If the non-criminal traffic violation is a **violation of a municipal ordinance**, the Plaintiff is the city or municipality.

A prosecuting attorney represents the Plaintiff.

Defendant – The individual charged with the non-criminal traffic violation.

Who are the Parties in an Appeal of a **Non-Criminal** Traffic Violation to District Court?

Appellant – The Defendant in the Municipal Court non-criminal traffic violation case.

Appellee – The Plaintiff in the Municipal Court non-criminal traffic violation case.

What is the Process to Appeal a Municipal Court Decision on a **Non-Criminal** Traffic Violation to District Court?

If you didn't request **and** attend a municipal court hearing for your non-criminal traffic violation, **Stop! You can't use this process.**

- The ND Legal Self Help Center is unable to identify a process for appeal. Consult a lawyer licensed to practice in North Dakota to determine your options, if any.

First: Make sure you have a non-criminal traffic violation.

Review the ticket you received for the traffic violation. If your traffic violation is listed in the Criminal Traffic Violations Definitions section on Page 3, you have a criminal traffic violation.

If your traffic violation isn't on the list of criminal traffic violations, you have a non-criminal traffic violation.

If you have a criminal traffic violation, **Stop!** Consult a lawyer licensed to practice in North Dakota to determine your options.

Second: Make sure your hearing was held in municipal court.

Review the final order in your non-criminal traffic violation case. The caption (top) on the first page of the order includes the name of the court. The Plaintiff is listed as the City, or Municipality.

Contact information for North Dakota municipal courts by is available at ndcourts.gov/district-court. Scroll to the bottom of the page for a drop-down menu.

If your non-criminal traffic violation hearing was held by a North Dakota state district court, **Stop!!** District Court non-criminal traffic violation decisions **can't** be appealed. The District Court decision is final.

Third: File a written notice of appeal with the Clerk of Municipal Court within 30 days of the final decision in your non-criminal traffic violation case.

A form for a notice of appeal is included at the end of this guide.

Complete the notice of appeal. Make one copy for your records.

File the original, written notice of appeal with the Clerk of Municipal Court.

The notice must be filed within 30 days of the final decision of the municipal court on your non-criminal traffic violation.

Fourth: The Clerk of Municipal Court serves a copy of the notice of appeal on the prosecuting attorney.

Service is giving a copy of the notice of appeal to the prosecuting attorney.

As required by Rule 37 of the North Dakota Rules of Criminal Procedure, the Clerk of Municipal Court serves a copy of the notice of appeal on the prosecuting attorney.

- Rule 37 is available at ndcourts.gov/legal-resources/rules/ndrcrimp/37.

Fifth: The Clerk of Municipal Court transmits all documents filed in the non-criminal traffic violation case to District Court.

Within seven days after you file your written notice of appeal with the Clerk of Municipal Court, the clerk transmits all of the documents filed in your case to the Clerk of District Court.

The Clerk of District Court files the documents in a District Court case and assigns a case number.

You're listed as Appellant in the District Court case. The city or municipality is listed as Appellee.

Sixth: Attend the District Court hearing at the scheduled date, place and time.

The District Court conducts a new trial of your non-criminal traffic violation.

- An Evidence Research Guide is available at ndcourts.gov/Media/Default/Legal%20Resources/Legal%20Self%20Help/Civil%20Action/Evidence%20Research%20Guide.pdf.
- A Subpoena Informational Guide is available at ndcourts.gov/legal-self-help/subpoenas.

At the hearing, you present your evidence. The Appellee may cross-examine your witnesses and object to your evidence.

The Appellee presents their evidence. You may cross-examine the Appellee's witnesses and object to their evidence.

Following the hearing, the court makes a finding of not guilty or guilty and imposes fines accordingly.

The District Court decision on a non-criminal traffic violation **can't be appealed. The District Court decision is final.**

If you **don't appear for the hearing, the District Court **must** affirm (approve) the Municipal Court judgment against you, **and** enter it as the District Court's judgment. Unless**, within seven days after the date of the scheduled hearing, you make a motion to the District Court that shows you had good cause to miss the hearing.

Lawyer Resources and Limited Legal Representation

You're not required to hire a lawyer to bring a civil case in North Dakota State District or Municipal Court. If you decide to represent yourself, you must follow all of the rules, laws and procedures a lawyer is required to follow.

Lawyer Resources

If you want to find a lawyer to represent you, you may find the following options of interest.

- **Legal Services of North Dakota** is a non-profit organization, providing free legal assistance to North Dakota residents in a variety of matters based on income. Legal Services of North Dakota can also determine whether an applicant meets the income requirements for the Volunteer Lawyers program that offers low-cost legal assistance based on income. The phone number is (800) 634-5263 and the website is lsnd.org.
- **Dakota Plains Legal Services** is a non-profit legal services organization that provides free legal assistance to low-income individuals, older Americans and veterans. Dakota Plains Legal Services (DPLS) has eight offices and serves communities across South Dakota and North Dakota, including nine tribal nations. DPLS is committed to increasing access to justice with quality legal assistance. Contact information is available on the DPLS website of dpls.org.

- **The State Bar Association** provides a lawyer referral service to match paying clients in need of legal services with lawyers. The phone number is (866) 450-9579 and the website is sband.org. The cost is \$30.00 for a 30 minute consultation with a lawyer.
- **For a list of all lawyers who are licensed to practice in North Dakota**, go to the North Dakota Court System website at ndcourts.gov/Lawyers.

Limited Legal Representation

Lawyers licensed to practice in North Dakota may provide Limited Legal Representation in civil cases. Limited Legal Representation (sometimes called “unbundling”) is a way a lawyer can help you with part of your case while you do the rest of your case. You pay for the part of the case the lawyer handled. For example:

- You may want a lawyer to give you an expert opinion about your options, or your legal rights and responsibilities;
- You can consult with a lawyer to prepare or review your paperwork, but attend hearings yourself;
- You can represent yourself through the whole case, and periodically consult with a lawyer who can coach you on the law, procedures and strategy;
- You can do the preparation yourself and hire a lawyer just to make the court appearance for you.

You and the lawyer must agree in writing to Limited Legal Representation.

North Dakota Free Legal Answers

This civil legal program is a partnership of the American Bar Association and the State Bar Association of North Dakota.

The purpose of the program is to provide free answers to **specific** civil legal question to low-moderate income North Dakotans who submit their questions online. Anonymous volunteer lawyers answer your question, but can’t represent the individual asking the question.

The self-represented individual can go to nd.freelegalanswers.org for information about the program, the online application, and, if the individual qualifies, ask their civil legal question.

This program **doesn’t** provide any assistance with criminal legal questions.

In Municipal Court

State of North Dakota

City/Municipality of _____

City of _____)

Plaintiff,)

vs)

_____)

Defendant.)

Case No. _____

**Notice of Appeal of Non-Criminal
Traffic Violation Under N.D.C.C.
Section 39-06.1-03(5)**

To the Above-Named Plaintiff:

1. **Please Take Notice That I** (*your name*), _____,
appeal to the District Court of _____ County, North Dakota, from the judgment
of conviction of (*name of Municipal Court Judge*) _____,
dated (*date of signature on order/judgment*) _____.

2. This appeal of a non-criminal traffic violation conviction is taken under Section 39-06.1-03(5) of the North Dakota Century Code.

Dated _____

(*Defendant's Signature*)

(*Defendant's Printed Name*)

(*Defendant's Address*) (City, State, Zip Code)

(Telephone Number) (Email)